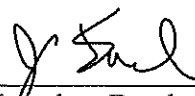


FIRST ENDORSEMENT

Executive Director Jonathan Darche, Civilian Complaint Review Board to Deputy Commissioner Amy Litwin, Department Advocate's Office, May 30, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2020-22201 against Detective (formerly PO) Richard Podlovits, Tax Registry No. 957965.

This case was conferenced on October 4, 2022, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of a reprimand, after a guilty plea. After further review, this case was re-conferenced on May 16, 2023, before Assistant Deputy Commissioner of Trials Jeff Adler, who approved the negotiated penalty of Training, after a guilty plea.

A handwritten signature in black ink, appearing to read "J. Darche", is positioned above a horizontal line.

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2020-22201
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE DT3	SURNAME, PODLOVITS	FIRST RICHARD	M.I. C	COMMAND GUN VIOL SUPP DIV Z2
SHIELD NO. 3293	TAX REGISTRY NO. 957965	SOCIAL SECURITY NO.	DATE APPOINTED 01/07/2015	

RANK/NAME OF COMPLAINANT	COMMAND
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DATE OF CHARGES	DATE TRIAL COMMENCED	DATE TRIAL CONCLUDED
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TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Police Officer Richard Podlovits, on or about March 4, 2019, at approximately 1900, while assigned to 052 PCT and on duty, in the vicinity of § 87(2)(b) Bronx County, abused his authority as a member of the New York City Police Department, in that he entered § 87(2)(b) in the Bronx without sufficient legal authority.	PLEADED GUILTY	TRAINING .00 - Respondent will comply with and complete re-training prescribed by the Department.


FIRST DEPUTY COMMISSIONER

8/21/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)


POLICE COMMISSIONER

10/11/23
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

October 3, 2023

Re: CCRB Case No. 201901922 (Incident Date: March 4, 2019) involving Detective Richard Podlovits, Tax No. 957965 (DADS No. 2020-22201)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving the above officer. It was determined that the CCRB recommendation of "Training" is appropriate in this matter. However, while formalized training will properly address the substantiated allegation and is appropriate under the Disciplinary System Penalty Guidelines, the imposition of charges and specifications is not warranted in a case where an appropriate penalty is formalized training.

Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter and Detective Podlovits will receive the formalized training appropriate in connection with the substantiated allegation.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John Tynan, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

October 11, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Detective Richard Podlovits
Disciplinary Case No.: 2020-22201

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October 3, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that you intend to dismiss the Charges and Specifications in this matter. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing the recommendation of CCRB, you determined that CCRB’s recommendation of “Training” is appropriate in this matter to properly address the substantiated allegation and is permitted under the Disciplinary System Penalty Guidelines but “the imposition of charges and specifications is not warranted in a case where an appropriate penalty is formalized training.”

At the time this plea was agreed to, CCRB was not resolving APU cases for disciplines other than Charges and Specifications. Today, CCRB is permitted to resolve APU cases for levels of discipline below that of Charges and Specifications. If CCRB was to resolve this case today, and Detective Podlovits was to accept responsibility for the misconduct, CCRB would have moved to dismiss the Charges and Specifications itself.

Respectfully submitted,

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board

Cc: John Tynan, Esq.